

LEGAL DOSSIER: CASE-MACHERET-1997-2026

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Legal Framework: Universal Declaration of Human Rights (UDHR), Jus Cogens, Erga Omnes

Verification Protocol: TI-ULA (Cryptographic Hashing & Pointer Isolation)

Node: NODE_LEGAL_BASIS_JUS_COGENS

Type: root_legal_trust_node

Legal Foundations (Root of Trust)

erga_omnes_obligations: Absolute and non-derogable obligations owed by the State to the international community as a whole.

international_conventions:

- articles:
 - '53'
 - '71'
- effect: Nullity ab initio of any national judicial decision attempting to validate or sanitize torture or property theft through procedural bad faith.
- instrument: Vienna Convention on the Law of Treaties (VCLT)
- year: 1969

- articles:
 - '4'
 - '7'
 - '15'
- effect: Obligation to prosecute, universal jurisdiction, and inadmissibility of statements extracted under torture.
- instrument: UN Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment
- year: 1984

universal_declaration_of_human_rights:

articles:

- application: Protection against arbitrary state infringement and state-sponsored violence
- article: '3'
- principle: Right to life, liberty and security of person
- application: Direct legal status of torture episodes starting from August 18, 1997 (Case No. 1-568/98)
- article: '5'
- principle: Absolute prohibition of torture and cruel, inhuman or degrading treatment
- application: Nullification of arbitrary detention starting August 5, 1997 (Judge Ciachir, name distortion)
- article: '9'
- principle: Protection against arbitrary arrest, detention or exile
- application: Mandatory restitutio in integrum for ZhSK-39, apt. 64 / Miron Costin 13/3
- article: '17'
- principle: Right to property and prohibition of arbitrary deprivation
- year: 1948

- **File:** Biography of the Criminal Judicial Rehabilitation of Alexei (A©tor).■■■■■■■■■■.pdf
- **SHA-256:** 4f30ae4d57a838143e91897c75ddb9206bf078716dee529a9a3481ed00db63ce
- **Role:** Narrative core, property claims, family acts
- **File:** Cererii_reabilitare_Pastulaci_Stambol_Grigoras.pdf
- **SHA-256:** bd1c166eb48689abcd4e1bae58121aa3fed622b8e06842966b5660cd7d37d674
- **Role:** Rehabilitation applications
- **File:** CITA■■IE_reabilitare_Grigoras_26.04.2024.pdf
- **SHA-256:** 3cb1a4d3e553f2ea4180ac6fdfbf9ef1f276d2eb870c093a6c7a194504e2b080
- **Role:** Citation referencing rehabilitation
- **File:** A_Negru_25.04.2023.pdf
- **SHA-256:** 7fa67dff9a4e79bcdb959a4adc5fb4b68c85c679b9e036be59d81b834e4f9bd0
- **Role:** Documents linked to Judge Negru

Node: NODE_TORTURE_AND_COVERUP_1997_1998

Type: evidence_node

Legal Framework

articles:

- 3
- 5
- 9

basis: UDHR

vector: arbitrary_detention (05.08.1997) -> torture_interrogation (18.08.1997) -> sentence_1_568_98 (13.10.1998) -> cover_up_and_non_rehabilitation

Cryptographic Anchors (Master Files)

- File: apostila [REDACTED]. 1-568_98] 1-272_2003 [REDACTED] 1-649_2008.pdf
 - SHA-256: 157623da476efb97a12378cb03d433c1f7e609e76ba9c6a60b135cbe58f4053c
 - Role: Apostilled judgment 1-568/98 confirming torture under interrogation
 - File: [REDACTED].signed.pdf
 - SHA-256: 7fc3be1b8698954b7fca035a092441e76f902448df9437378e64317471ed943c
 - Role: t0-anchor Decizie Ciachir 06.08.1997 (arbitrary detention)
-

Node: SUBNODE_PROPERTY_RESTITUTION_1977_2026

Type: property_restitution_subnode

Legal Framework

basis: UDHR Art. 17 (Right to property & prohibition of arbitrary deprivation)

vector: property_confiscation -> fraudulent_registration -> non_restitution -> restitution_in_integrum

Cryptographic Anchors (Master Files)

- File: Infodebit_Credit_Report_Alexei_Maceret_26.02.2024.jpg
 - SHA-256: 02455b17ecd6956b9adad5f4e5411f7c04b9a3f574b662388d1e43e73da00b5f
 - Role: Economic anchor and residential address verification (Miron Costin 13/364)
 - File: apostila.2-1642_08[REDACTED].pdf
 - SHA-256: ec45660bed4e6babbeb2b5b1c62b49ead8c30b579bab76dfbdebacef0dd708ef
 - Role: Property claims and case file no. 2-1642/08 (ZhSK-39 / apt. 64)
-

Node: LINK_NON_REHABILITATION_JUS_COGENS

Type: verification_link

Verification Points

- **File:** Cererii_reabilitare_Pastulaci_Stambol_Grigoras.pdf
 - **Mapping:** UDHR Art. 8, Const. RM Art. 53 (Initiation of effective remedy)
 - **Status:** verified_demand
 - **File:** CITA■IE_reabilitare_Grigoras_26.04.2024.pdf
 - **Mapping:** Procedural trace of the rehabilitation mechanism
 - **Status:** verified_trace
 - **File:** A_Negru_25.04.2023.pdf
 - **Mapping:** VCLT Art. 53 (Acts conflicting with Jus Cogens are void)
 - **Violation:** Denial of justice by Judge Negru. Subversion of Erga Omnes obligations.
 - **Status:** verified_violation
-

Node: NODE_ENTITY_ACCOUNTABILITY_NETWORK

Type: entity_mapping_node

Legal Framework

basis: [Universal Jurisdiction / Individual Responsibility for Jus Cogens violations](#)

Entity Accountability Network

- **Gheorghe Morozan** (Investigative Judge (Judec■toria Rî■cani)): Issued Judicial Order No. 337/07 on July 24, 2007, validating the fabricated search at Miron Costin 13/3, apt. 64 as the initial procedural fabrication step
 - **Alexandru Negru** (Judge): Formal denial of rehabilitation / Obstruction of effective remedy (UDHR Art. 8)
 - **Viorelia Grigora■** (Judge): Issuing citations and procedural orders maintaining procedural barriers while processing rehabilitation claims
 - **Tudor Stambol** (Judge): Issued rulings intentionally confusing review (revizuire, CPC Art. 458) with rehabilitation (CP Art. 112), ignoring res judicata of torture judgment No. 1-568/98
 - **Tatiana Postolachi (Pastulaci)** (Judge (Judec■toria Chi■in■u, sediul Buiucani)): Processing sham rehabilitation applications under CPC RM Arts. 250-251 while enforcing administrative preclusion and blocking full exoneration
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Node:

FINANCIAL_MODEL_DAMNUM_EMERGENS_LUCRUM_CESSANS_2026

Type: economic_restitution_model

Node: NODE_FINANCIAL_MODEL_1997_2026

Type: damage_calculation_node

Financial & Moral Claim (Provisional)

```
damnum_emergens:
  property:
    asset: ZhSK-39 apt. 64 (Miron Costin 13/3)
    metric: market_value + historical_inflation
    variables:
      base_value: 75000
      currency: EUR
      status: provisional
lucrum_cessans:
  lost_income:
    metric: base_monthly_rate * duration_months
    source: Firma Comex SRL (20% stake) + professional blockade
    subject: Alexei Macheret
    variables:
      base_monthly_rate: 1500
      currency: EUR
      status: provisional
      total_lost_base_income: 523500
moral_damage:
  jus_cogens_violation:
    metric: international_tribunal_standard (UN CAT / UDHR Art. 3, 5, 9)
    variables:
      currency: EUR
      estimated_claim: 500000
      status: provisional
```

Total Provisional Claim: 1098500 EUR

Node: LINK_ACCOUNTABILITY_TO_CONSEQUENCES

Type: causation_link

Legal Framework

```
basis: Draft Articles on Responsibility of States for Internationally Wrongful Acts,
      UDHR Art. 8
mechanism: perpetuation_of_harm_through_denial_of_justice
```

Causation Vectors

- **Entity Group:** Judges (Negru, Stambol)
- **Action:** Intentional blockage of the rehabilitation mechanism and dismissal of primary torture evidence (Sentin■■■ 1-568/98)
- **Effect:** Maintained the victim's criminalized status, directly causing the uninterrupted accumulation of Lucrum Cessans (professional blockade) and Moral Damage.
- **Entity Group:** State of Moldova
- **Action:** Failure to provide effective remedy and correct acts of its agents

- **Effect:** Full State Liability for the total provisional claim of 1,098,500 EUR + ongoing monthly accruals.

Node: TI_ULA_MASTER_DAG_REGISTRY_2026

Type: N/A
